

Master Services Agreement

This Master Services Agreement (this "**Agreement**") is entered into as of April 11, 2026 (the "**Effective Date**"), by and between **Cypress Cloud Services, LLC**, a Delaware limited liability company ("**Cypress**" or "**Vendor**"), and **Pinnacle Financial Group, Inc.**, a Delaware corporation ("**Pinnacle**" or "**Customer**"). Each is a "**Party**" and together they are the "**Parties**."

1. Engagement; Statements of Work

Customer engages Vendor to perform professional services under one or more Statements of Work ("**SOWs**") executed by both Parties. Each SOW shall describe the scope, deliverables, fees, timeline, and acceptance criteria, and shall be governed by the terms of this Agreement. In the event of conflict between this Agreement and an SOW, the SOW controls to the extent of the conflict, **except** that this Agreement's provisions on intellectual property, confidentiality, indemnification, and limitation of liability govern any SOW unless specifically and explicitly amended by reference to the section of this Agreement.

Services and Deliverables include all reports, software, designs, recommendations, and other work product produced for Customer under an SOW.

2. Payment Terms

Customer shall pay Vendor's invoices **net sixty (60) days** from the invoice date. Vendor may invoice Customer **in advance** for fees attributable to fixed-fee SOW milestones, payable upon SOW execution or such other schedule as the applicable SOW specifies. Late payments accrue interest at one percent (1.0%) per month or the maximum rate permitted by applicable law, whichever is lower.

If any undisputed invoice remains unpaid beyond seventy-five (75) days, Vendor may, in addition to any other remedies, suspend Services under the applicable SOW upon ten (10) days' written notice. Customer may dispute invoiced amounts in good faith with written notice within twenty (20) days of receipt; undisputed amounts remain payable on the regular schedule.

Vendor's fees are exclusive of taxes; Customer is responsible for all applicable sales, use, and similar taxes.

3. Intellectual Property; Ownership of Deliverables

Vendor retains all right, title, and interest in and to the Deliverables, including all intellectual property rights embodied therein. Vendor hereby grants Customer a

non-exclusive, perpetual, irrevocable, royalty-free, worldwide license to use, reproduce, display, perform, and create derivative works of the Deliverables for any internal business purpose, including operating, modifying, integrating, and extending the Deliverables across Customer's enterprise and any successor entities.

The license does **not** permit Customer to: (a) sell, sublicense, or distribute the Deliverables (or substantial portions thereof) to third parties as a standalone product or service offering; or (b) use the Deliverables to provide commercial services to third parties that compete with Vendor's core service offerings.

Vendor Background IP and Customer's pre-existing intellectual property remain the property of their respective owners. Customer grants Vendor a limited license to use Customer's pre-existing intellectual property solely as necessary to perform the Services.

4. Warranties

Vendor represents and warrants that: (a) the Services will be performed in a workmanlike manner consistent with prevailing industry standards; (b) the Deliverables will conform in all material respects to the specifications set forth in the applicable SOW; (c) Vendor has all rights necessary to grant the licenses set forth herein; and (d) to Vendor's knowledge, the Deliverables do not infringe any third party's intellectual property rights.

EXCEPT FOR THE EXPRESS WARRANTIES SET FORTH ABOVE, VENDOR DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR ARISING FROM COURSE OF DEALING OR USAGE OF TRADE, INCLUDING THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

Customer's exclusive remedy for breach of these express warranties is, at Vendor's option, re-performance of the non-conforming Services, replacement of the non-conforming Deliverable, or refund of fees paid for the specifically non-conforming Service or Deliverable, provided Customer notifies Vendor within thirty (30) days of discovery.

5. Indemnification

Each Party (the "**Indemnifying Party**") shall defend, indemnify, and hold harmless the other Party (the "**Indemnified Party**") from and against third-party Losses arising out of (a) the Indemnifying Party's gross negligence or willful misconduct, (b) the Indemnifying Party's breach of its representations and warranties in this Agreement, or (c) bodily injury or tangible property damage caused by the Indemnifying Party's employees or agents.

Vendor shall additionally indemnify Customer against third-party claims that a Deliverable, as delivered by Vendor, infringes such third party's U.S. patent, copyright, or trademark rights. **This intellectual-property indemnification is subject to the aggregate**

liability cap in Section 6 and excludes Losses arising from (i) Customer's modifications to a Deliverable, (ii) Customer's combination of a Deliverable with materials not supplied by Vendor, (iii) Customer's use of a Deliverable outside the license granted herein, or (iv) the willful misconduct of Customer.

The Indemnified Party shall give prompt written notice of any claim, tender sole control of the defense and settlement of the claim to the Indemnifying Party, and not settle any claim without the Indemnifying Party's written consent (not to be unreasonably withheld).

6. Limitation of Liability

EXCEPT FOR (A) AMOUNTS OWED FOR SERVICES RENDERED, (B) A PARTY'S BREACH OF CONFIDENTIALITY OBLIGATIONS, AND (C) A PARTY'S GROSS NEGLIGENCE OR WILLFUL MISCONDUCT, **EACH PARTY'S AGGREGATE LIABILITY UNDER THIS AGREEMENT — INCLUDING ALL INDEMNIFICATION OBLIGATIONS — SHALL NOT EXCEED THE FEES PAID BY CUSTOMER TO VENDOR UNDER THE APPLICABLE SOW IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO LIABILITY.**

NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS, LOST REVENUE, LOST DATA, OR BUSINESS INTERRUPTION, EVEN IF SUCH DAMAGES WERE FORESEEABLE OR THE PARTY WAS ADVISED OF THE POSSIBILITY THEREOF.

7. Term and Termination

This Agreement commences on the Effective Date and continues until terminated. Either Party may terminate this Agreement: (a) **for convenience upon ninety (90) days' written notice to the other Party**; (b) for cause if the other Party materially breaches this Agreement and fails to cure within thirty (30) days after written notice of the breach; or (c) **upon a change of control of the other Party**, by giving written notice within thirty (30) days after such Party first becomes aware of the change of control.

"Change of control" means a transaction or series of related transactions in which a person or entity acquires more than fifty percent (50%) of the voting equity of the Party in question, or all or substantially all of such Party's assets.

Termination of this Agreement does not affect SOWs in progress unless expressly stated in the termination notice. Sections 3, 5, 6, 8, and 11 survive termination.

8. Confidentiality

Each Party shall protect the other Party's confidential information using the **same degree of care that it uses to protect its own confidential information of similar nature and importance**, but in no event less than reasonable care. Confidential information includes all non-public business, technical, financial, and personnel information disclosed in connection with this Agreement. Obligations survive for five (5) years after termination, indefinitely for trade secrets.

9. Governing Law

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict-of-laws principles. The Parties consent to the exclusive jurisdiction of the state and federal courts located in Wilmington, Delaware.

10. Miscellaneous

Entire Agreement; Amendments. This Agreement, together with all SOWs, is the entire agreement of the Parties. Amendments require a writing signed by authorized representatives of both Parties.

Assignment. Neither Party may assign this Agreement without the other Party's prior written consent, except to an affiliate or successor in connection with a merger, acquisition, or sale of substantially all assets, subject always to the change-of-control termination right in Section 7.

Independent Contractor. Vendor is an independent contractor.

Counterparts; Electronic Signature. This Agreement may be executed in counterparts and via electronic signature.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

CYPRESS CLOUD SERVICES, LLC	PINNACLE FINANCIAL GROUP, INC.
By: _____	By: _____
Name: Antonio Reyes	Name: Margaret Liu
Title: Managing Member	Title: Chief Information Officer